

5.	30-2024-01382035	1. Motion to Compel Production
Frank Recruitment Group, Inc vs. Loko AI, Inc		Plaintiff/Cross-Defendant, Frank Recruitment Group Inc. (“FRG”) moves for an order compelling Cross-Complainant Loko AI, Inc. (“Loko”) to produce documents in accordance with Responses to Request for Production of Documents, Set One. FRG contends that on March 21, 2025, FRG propounded Request for Production of Documents, Set One to Loko, and that on May 7, 2025, Loko served responses to FRG’s Request for Production of Documents, Set One, providing that it would comply with each request, but that no documents have been produced. Code of Civil Procedure section 2031.320(a) provides that a party may move for an order compelling compliance if a party serving a response to an inspection demand thereafter fails to permit inspection in accordance with that party’s statement of compliance. The opposition asserts and the reply acknowledges that after the filing of this motion on November 17, 2025, Loko served its document production on February 23, 2026. (Supplemental Declaration of Patrick A. Hormillosa, ¶¶ 3-4 (“Reply Hormillosa Decl.”).) Therefore, the request to compel the production of documents is MOOT. To the extent that FRG contends that the document production is incomplete, and that the document production is missing documents identified in Loko’s other discovery responses that would be responsive to Request for Production, Set One, Nos. 12, 15, 16, and 32, that is a new argument raised in reply. Additionally, FRG does not argue that no documents were produced in response to the abovementioned requests. Further, these other discovery responses to which FRG refers, are supplemental responses that were served subsequent to Loko’s document production. What remains is FRG’s request for monetary sanctions. <i>Monetary Sanctions</i> The motion requests that the Court award FRG monetary sanctions in the amount of \$3,612.50 against Loko pursuant to Code of Civil Procedure section 2031.320(b) and 2023.030(a). “[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.320(b).) Additionally, the court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney’s fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010(d).)

“The purpose and effect of sections 2023.030(a) and 2031.320(b) is not to punish but to compensate a litigant for costs that litigant incurred as a result of another litigant’s misuse of the discovery process.” (*Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1151.)

Loko does not contend that it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Instead, Loko first contends that the request should be denied outright as it fails to comply with Code of Civil Procedure section 2023.040.

FRG contends that the motion clearly specifies that they are seeking discovery sanctions against Loko and their counsel in the amount of \$3,612.50.

Code of Civil Procedure section 2023.040 provides: “A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.”

The individual or party against whom the sanctions are sought must be identified in the notice of motion and supported by evidence. (*Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316, 321 [no monetary sanctions where notice of motion and the declaration accompanying that notice of motion did not comply with Code of Civil Procedure section 2023.040, stated no amount and no facts supporting any amount of monetary sanction, and only detailed the meet and confer process]; *Corralejo v. Quiroga* (1984) 152 Cal.App.3d 871, 874 [order imposing sanctions on attorney reversed where notice of motion did not clearly provide that sanctions were being sought against attorney]; cf. *Sole Energy Co. v. Hodges* (2005) 128 Cal.App.4th 199, 207-210 [default judgment reversed because moving party failed to specify in notice of motion that it sought terminating sanction, although notice of motion sought monetary sanctions and memorandum of points and authorities advised court it could consider terminating sanction].)

Here, the notice of motion provides that “a monetary sanction is warranted under Code of Civil Procedure sections 2023.030(a) and 2031.320(b) for the abuse of discovery by Loko and their counsel.” (ROA 76, Notice of Motion, 2:5-6.) The notice of motion specifies the type of sanctions sought, i.e., monetary sanctions, and sufficiently identifies that FRG seeks sanctions against Loko and their counsel.

FRG contends, in the alternative, that the request for \$3,612.50 should be significantly reduced as \$2,550 of the this total is for an ex parte application for the setting of the hearing on this motion and not on this motion itself such that it should not be awarded, and that the remaining \$1,062.50 is a request for 2.5 hours of work on the motion which is unreasonable looking at the work product in this motion, and that the amount of monetary sanctions, if any are awarded, should not be more than one hour’s worth of time, or \$425.

Initially, the amount requested in the moving papers and the reply is the same, i.e., \$3,612.50. There is no dispute as to the requested \$425 hourly rate. (Declaration of Patrick A. Hormillosa, ¶ 15.) The declaration filed in support of the moving papers sought \$2,550 for anticipated costs to draft an ex parte application, to review the opposition, to prepare a reply, and to attend the hearing on the motion totaling six (6.0) hours. (*Id.*) The supplemental declaration filed in reply provides that 2.0 hours was expended for the ex parte

		application for order shortening time on hearing for motion, 3.0 hours to review the opposition and to draft the reply, and an anticipated 1.0 hours to attend the hearing. The Court finds that 2.0 hours to review the opposition and to draft the reply, and 1.0 hours to attend the hearing to be reasonably incurred for this motion. With regards to the time to draft and prepare the instant motion, FRG requests \$1,062.50 for 2.5 hours of work. Given the relatively simple nature of this motion, the Court finds 1 hour to be reasonably incurred for drafting this motion. Based on the foregoing, the Court GRANTS monetary sanctions in the reduced amount of \$ 1,700 (\$425 x 4 hours) against Loko and its counsel, to be paid within 30 days. <i>Loko's Objection to Reply Declaration</i> Loko objects to the supplemental reply declaration of Patrick Hormillosa as entirely additional evidence. The general rule of motion practice is that new evidence is not permitted with reply papers, and should only be allowed in an exceptional case. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) If allowed, the other party should be given an opportunity to respond. (<i>Id.</i> at p. 1538.) There is an exception for points that are strictly responsive to arguments made for the first time in opposition. (<i>Golden Door Properties, LLC v. Superior Court of San Diego County</i> (2020) 53 Cal.App.5th 733, 774.) Upon review of the supplemental reply declaration, paragraphs 1-4 and 7 are responsive to arguments raised in the reply, i.e., that Loko produced documents and that FRG's request for monetary sanctions should be significantly reduced. Therefore, the Court considers those portions of the supplemental reply declaration. Paragraphs 5 and 6 present new evidence which is not responsive to arguments raised in the moving papers or reply. The Court disregards these paragraphs. FRG to give notice.
6.	30-2024-01372374 Associated Ready Mixed Concrete, Inc vs. GT Commercial Concrete, Inc	1. Motion to Deem Facts Admitted 2. Motion to Deem Facts Admitted Plaintiff Associated Ready Mixed Concrete, Inc. ("Plaintiff") moves for an order that Plaintiff's First Set of Requests For Admissions propounded upon defendants Todd Hand and GT Commercial Concrete, Inc. ("Defendants") on July 25, 2025 be deemed admitted. Plaintiff also seeks monetary sanctions against Defendants and their counsel. However, the Court Trial in this matter was set for December 1, 2025 when these motions were filed with all discovery deadlines to be based on that trial date. (See ROA 75.) Parties may have motions concerning discovery heard on or before the 15th day before the date initially set for the trial of the action. (Code Civ. Proc., § 2024.030(a).) Plaintiff filed these motions with a hearing date of June 4, 2026, knowing that they would not be heard until after the then-set trial date and made no attempts to advance the hearing date. Thus, the motions are DENIED. Plaintiff to give notice.